

HOUSE No. 574

The Commonwealth of Massachusetts

PRESENTED BY:

Carole A. Fiola

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the use of mobile devices in public school districts.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Carole A. Fiola</i>	<i>6th Bristol</i>	<i>1/16/2025</i>
<i>Patrick Joseph Kearney</i>	<i>4th Plymouth</i>	<i>1/17/2025</i>

HOUSE No. 574

By Representative Fiola of Fall River, a petition (accompanied by bill, House, No. 574) of Carole A. Fiola and Patrick Joseph Kearney that the Department of Elementary and Secondary Education be authorized to establish a policy that provides for when a student’s use of a student’s cellphone. Education.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the use of mobile devices in public school districts.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 71 of the General Laws is hereby amended by inserting after
2 section 99 the following new section:

3 Section 100. Restrictions on the use of mobile electronic devices.

4 (1) For the purposes of this section, the following words shall have the following
5 meanings, unless the context clearly requires otherwise.

6 “Department”, the Department of Elementary and Secondary Education.

7 “Emerging technology”, any other device that has or be able to act in place of or as an
8 extension of an individual’s cellphone. “Emerging technology” shall not include school-provided
9 or required devices.

“Mobile electronic device”, any hand-held or other portable electronic equipment capable of providing data or voice communication between 2 or more persons, including, without limitation, a mobile telephone, a text messaging device, a paging device, a personal digital assistant, a laptop computer, a tablet computer, wearable electronic communications device or display, electronic equipment that is capable of playing a video game, solid state memory storage device or digital video disk, equipment on which digital photographs or videos are taken or transmitted or any combination thereof, or equipment that is capable of visually receiving a television broadcast; provided, however, that mobile electronic device shall not include any audio equipment or any equipment installed, or affixed, either temporarily or permanently, in a motor vehicle for the purpose of providing navigation or emergency assistance to the operator of such motor vehicle or video entertainment to the passengers in the rear seats of such motor vehicle.

“Cellphone” or “Mobile telephone”, a handheld, wearable or portable cellular, analog, wireless, satellite or digital telephone, including a telephone with 2-way radio functionality, capable of sending or receiving telephone communications and which a user initiates, terminates or engages in a call using either at least one hand or through use of voice commands. For the purposes of this chapter, “mobile telephone” shall not amateur radios operated by those licensed by the Federal Communications Commission to operate such radios, or citizen band radios.

“Smart watch”, means a wearable computing device that closely resembles a wristwatch or other time-keeping device with the capacity to act in place of or as an extension of an individual’s cellphone. “Smart watch” shall not include a wearable device that can only tell time, monitor an individual’s health informatics, or track an individual's physical location.

(2). Except as provided in subsection (3), a student may not use a student's cellphone, mobile electronic device, smart watch, or emerging technology at a public school during the school day.

(3). A school district:

(a) shall establish a policy that provides for when a student's use of a student's cellphone, mobile electronic device, smart watch or emerging technology is necessary:

(i) to respond to an imminent threat to the health or safety of an individual;

(ii) for a student's Individualized Education Plan or Section 504 accommodation plan;

(iii) certain English learner students; or

(iv) to address a medical necessity; and

(b) may create additional policies establishing reasonable exceptions to when a student may use a student's cellphone, mobile electronic device, smart watch or emerging technology in a manner the district determines does not interfere with the learning environment at a school.

(4). The department may create one or more model policies regarding when a student may use a student's cellphone, mobile electronic device, smart watch or emerging technology in a school during the school day. When establishing such policies, the department shall consider criteria that includes, but is not limited to the following:

(a) limiting use to specified time periods, designated locations, or during particular activities; and

(b) limiting use by requiring students to leave cellphones, mobile electronic devices, smart watches or emerging technology at the front of the classroom or in an administrative office, or by placing such devices in a secure container.

(5). Subject to appropriation and in accordance with Chapter 70, the department shall make rules:

(a) creating a grant program to assist a school district with the purchase of equipment for the implementation of this section; and

(b) establishing the criteria for the grant program described in subsection (5)(a), including:

(i) an application format;

(ii) relevant timelines and deadlines;

(iii) a scoring rubric, including criteria to determine a grant award amount;

(iv) allowable uses of a grant award, including types of equipment such as magnetic locking pouches; and

(v) any relevant data to evaluate the program that the department determines is necessary.

SECTION 2. Within 180 days of the effective date of this act, the department shall promulgate regulations to implement this section.